

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

12. MELANIE SCHWARTZLER V. ROBERT CLINTON

PFL20170631

On January 16, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. Petitioner was personally served on January 22, 2026, as is required by Family Code § 215.

Petitioner has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Petitioner. She had notice of the pending requests and chose not to file an opposition. As such, the court finds good cause to treat her failure to do so as an admission that the claims made in the RFO are meritorious.

Respondent is requesting sole legal and sole physical custody of the children. He asks that Petitioner have visitation on the second and fourth Sunday of each month from 9:00am to 5:00pm.

After reviewing the filings as outlined above the court finds the requests made by Respondent are in the best interests of the minors. Respondent shall have sole legal and physical custody of the minors. Petitioner shall have parenting time the second and fourth Sunday of each month from 9:00am to 5:00pm. All prior orders not in conflict with this order remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #12: RESPONDENT SHALL HAVE SOLE LEGAL AND PHYSICAL CUSTODY OF THE MINORS. PETITIONER SHALL HAVE PARENTING TIME THE SECOND AND FOURTH SUNDAY OF EACH MONTH FROM 9:00AM TO 5:00PM. ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR

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BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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13. MARIA VARGAS-COOK V. REILLY COOK

PFL20180521

On January 30, 2026, Respondent filed a Request for Order (RFO) seeking modification of permanent spousal support. Respondent did not file an Income and Expense Declaration and there is no Proof of Service for the RFO. This matter is dropped from calendar.

TENTATIVE RULING #13: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.